

(2) This Act shall apply to any vessel which is capable of carrying in bulk, whether for cargo or for bunker purposes, more than twenty-five tons of oil, or which, though not so capable is constructed or fitted to carry in bulk as aforesaid more than five tons of oil in any one space or container.

(3) The waters to which this Act applies are the territorial waters of Great Britain and Northern Ireland and the waters of harbours therein.

(4) For the purposes of section six of the Government of Ireland Act, 1920, this Act in its application to Northern Ireland shall be deemed to be an Act passed before the appointed day. 10 & 11
Geo. 5. c. 67.

9.—(1) This Act may be cited as the Oil in Navigable Waters Act, 1922. Short title
and saving.

(2) The provisions of this Act shall be in addition to and not in derogation of or substitution for any provisions for the protection of a harbour as defined in this Act contained in any existing Act or re-enactment thereof or in any order, rule, regulation, or bye-law made or to be made under such Act or any re-enactment thereof.

(3) This Act shall come into operation on the first day of January, nineteen hundred and twenty-three.

. CHAPTER 40.

An Act to confirm an agreement between the Mayor and Commonalty and Citizens of the City of London and the President of the Air Council in relation to the acquisition of certain lands in the county of Surrey, and for purposes in connection therewith. [4th August 1922.]

WHEREAS an Agreement (in this Act referred to as “the agreement”) was made on the seventeenth day of November, one thousand nine hundred and twenty-one, between the Mayor and Commonalty and Citizens of the City of London (in this Act and the agreement referred to as “the Corporation”) of the one part and the President of the Air Council (in this Act and the agreement referred to as “the President”) of the other

part with respect to the acquisition by the President of certain land in the parish of Coulsdon in the county of Surrey (in this Act and the agreement referred to as "the aerodrome site"), and the conveyance to the Corporation of certain other lands (in this Act and the agreement referred to as "the substituted lands") in substitution therefor, which agreement is set out in the Schedule to this Act:

And whereas the agreement is subject to the sanction of Parliament being obtained thereto:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows;—

Confirma-
tion of
agreement.

1.—(1) The agreement is hereby sanctioned and shall have effect as if enacted in this Act, and the President and the Corporation shall have, and shall be deemed to have had, all such powers as may be necessary in order to give effect to the agreement.

41 & 42 Vict.
c. cxxvii.

(2) Any land or rights acquired by the Corporation under this Act and the agreement shall be deemed to be land and rights acquired by them under the Corporation of London (Open Spaces) Act, 1878, and that Act shall apply accordingly.

Stopping up
of roads, &c.,
over aero-
drome site.

2.—(1) The President by order may stop up, divert, or extinguish any public or private right of way over or on the aerodrome site, but reasonable compensation shall be made to all persons who have any rights in any private right of way so stopped up or extinguished.

(2) Nothing in this section shall authorise the President to stop up or to divert or to extinguish any right of way over the main road to Caterham so far as the same crosses the aerodrome site.

Extinguish-
ment and
transfer of
common
rights, &c.

3.—(1) As from the passing of this Act, all rights of common, manorial, sporting or other similar rights in over or affecting the aerodrome site (if any) shall be exerciseable over the substituted lands in the same manner and to the same extent so far as may be reasonably practicable, as the said rights have hitherto been exerciseable in or over the aerodrome site, and any such rights over the aerodrome site shall be extinguished, and

the President shall give notice of the effect of this section by publication in two successive weeks in some local newspaper circulating in the district.

(2) Any person who suffers any damage or loss by reason of any such right as aforesaid being transferred from the aerodrome site to the substituted lands, shall be entitled to reasonable compensation in respect thereof if within three months after such publication as aforesaid he sends to the President in writing the amount of his claim and the grounds upon which it is based.

4. The amount of compensation (if any) to which any person is entitled under this Act shall be determined, in default of agreement, by an official arbitrator under the Acquisition of Land (Assessment of Compensation) Act, 1919. Assessment of compensation.
9 & 10
Geo. 5. c. 57.

5. Any expenditure incurred by the President under this Act and the agreement (including the amount of any compensation or costs payable by him), shall be paid out of moneys provided by Parliament. Expenses of Act.

6. The powers conferred on the President and the Corporation by this Act shall be in addition to and not in derogation of any other powers of the President and the Corporation. Saving of powers of President and Corporation.

7. This Act may be cited as the Air Ministry (Kenley Common Acquisition) Act, 1922. Short title.

SCHEDULE.

Preamble.

AN AGREEMENT made the 17th day of November 1921
BETWEEN THE MAYOR AND COMMONALTY AND CITIZENS OF
THE CITY OF LONDON (hereinafter referred to as "the
Corporation") of the one part, and THE PRESIDENT OF THE
AIR COUNCIL (hereinafter referred to as "the President")
of the other part.

WHEREAS under or by virtue of the Corporation of London
(Open Spaces) Act, 1878, and an indenture of conveyance
dated the 5th day of February, 1883, and made between
Edmund Byron of the one part and the Corporation of the
other part, the land described in the First Schedule hereto

and delineated on the plan hereto annexed and thereon edged blue was (inter alia) acquired by and is still vested in and held by the Corporation and their successors for ever subject to the provisions of the said Act in mortmain in perpetuity as an open space :

And whereas the President or some other Government Department took possession of the said land on or about the 8th day of June, 1917, under the Defence of the Realm Regulations, and used the same as an aerodrome for the public service and in connection with such user erected thereon or on parts thereof divers buildings, erections, and works :

And whereas the President still continues to use the said land and the buildings, erections, and works thereon as an aerodrome for the public service :

And whereas the said land is required permanently by the President for the purposes of or in connection with an aerodrome for the public service. Now it is hereby agreed as follows :—

1. This Agreement is subject to the sanction of Parliament being obtained hereto as hereinafter mentioned so far as such sanction shall be necessary to enable the provisions hereof to be carried into effect, and the President may continue to use the said land and the buildings, erections, and works thereon as an aerodrome for the public service until the sanction of Parliament as aforesaid shall have been obtained hereto, and in the event of such sanction not being obtained within twelve months from the date hereof, or in the event of the President determining this Agreement, under the provisions of Clause 11 hereof the President shall deliver up vacant possession of the said land to the Corporation, and at his own cost shall restore it to its former state and condition to the satisfaction of the Corporation or pay the Corporation compensation in lieu thereof.

2. The Corporation shall, in consideration of the lands hereby agreed to be conveyed to them by the President, convey to the President the land described in the First Schedule hereto, and delineated in the plan annexed hereto and thereon edged blue (hereinafter sometimes referred to as "the aerodrome site") and the inheritance thereof in fee simple in possession free from incumbrances, subject nevertheless as is hereinafter mentioned.

3. The aerodrome site shall be conveyed to the President subject to the conditions and stipulations mentioned in the Second Schedule hereto (and the conveyance to the President shall contain covenants by him to perform and observe such conditions and stipulations), subject also to the rights (if any) of the local authority and the general public over the main

road to Caterham southwards from its junction with the southerly boundary of Ordnance Plot No. 287d. as shown on the said plan, subject also to such rights (if any) as are then enjoyed by the tenants of the manor of Coulsdon over the aerodrome site, subject also to all such (if any) rights of common or pasture over the aerodrome site as shall then be vested in the lord of the said manor of Coulsdon, and subject lastly to all such (if any) rights of sporting, hunting, and shooting over the aerodrome site as may then be vested in one Edmund Byron if then lord of the said manor.

4. The aerodrome site shall be used by the President for the purposes of an aerodrome for the public service or for purposes connected with an aerodrome for the public service and for no other purposes, and if at any time hereafter the aerodrome site shall cease to be used by the President as an aerodrome for the public service or for purposes connected with an aerodrome for the public service then and in that case the aerodrome site shall revert to the Corporation and their successors free of expense including all costs of such restoration as the Corporation may reasonably require in fee simple to be held by the Corporation and their successors for the purposes of a common or open space under the Corporation of London (Open Spaces) Act, 1878.

5. The title to the aerodrome site shall commence with the above-mentioned Indenture of Conveyance of the 5th day of February, 1883, and the President shall not require the production of or investigate or make any requisition or objection in respect of the prior title, whether the same shall appear to be in the Corporation's possession or power or not, and shall assume without further proof that the Corporation are seised in fee simple free from incumbrances.

6. The President shall, in consideration of the land hereby agreed to be conveyed by the Corporation to the President, convey to the Corporation the lands described in the Third Schedule hereto and delineated on the said plan annexed hereto and thereon edged red (hereinafter sometimes referred to as "the substituted lands") and the inheritance thereof in fee simple in possession free from incumbrances.

7. The substituted lands when vested in the Corporation shall be held by the Corporation for the purposes of a common or open space under the Corporation of London (Open Spaces) Act, 1878.

8. The President shall convey the substituted lands to the Corporation in his official capacity, and the Corporation shall, upon production to them of the Conveyance of the said substituted lands to the President, admit without investigation,

objection, requisition, or inquiry of any kind, the title of the President as the President of the Air Council to the fee simple of the substituted lands, and also his power to convey the same to the Corporation by way of exchange for the aerodrome site, and that everything has been done to enable him to convey the substituted lands to the Corporation, and no abstract of the President's title shall be given or required, and the conveyance shall contain the usual acknowledgment of the right of the Corporation to production of any document of title relating to the said substituted lands, and to delivery of copies thereof, and an undertaking for safe custody thereof.

9. The exchange hereby agreed to be made shall be completed at the office of the Treasury solicitor at Storey's Gate, in the city of Westminster, within six calendar months from the date of the sanction of Parliament being obtained as hereinafter mentioned, and up to the date of completion the President shall discharge all outgoings in connection with the substituted lands, such outgoings to be apportioned if necessary.

10. If the sanction of Parliament shall be obtained as hereinafter mentioned, and if the works and improvements hereinafter mentioned are carried out, the President shall pay to the Corporation the amount expended by the Corporation in carrying out upon the substituted lands, the works, and improvements mentioned in the Fourth Schedule hereto in order to adapt the substituted lands as an open space to be used for the recreation and enjoyment of the public, or the sum of 2,000*l.* whichever shall be the less.

11. The substituted lands not having yet been acquired by the President, it is stipulated that if before the 31st day of December, 1921, he shall fail to acquire the same by agreement with the owners thereof or fail to acquire such title thereto as he shall deem satisfactory, or to obtain the sanction of Parliament as hereinbefore mentioned, either party shall be at liberty by notice in writing delivered to the other of them to rescind this Agreement subject nevertheless as is herein provided.

12. The President after he shall have acquired or made arrangements for the acquisition of the substituted lands, shall, with all convenient speed and at his own expense in all respects, promote a Bill in Parliament with the concurrence or consent of all necessary persons willing to concur therein or consent thereto for the purpose of obtaining the sanction of Parliament to this Agreement, so far as such sanction shall be necessary to enable the provisions hereof to be carried into effect and for conferring on the Corporation and other parties (if any) the powers necessary to enable them to carry this Agreement into effect and in case such sanction and powers shall not be

obtained on or before the 31st day of December, 1922, or such later date as may be agreed on in writing between the parties hereto, this Agreement shall become void and of no effect.

13. The costs of the Corporation of and incidental to the negotiations for preparation and execution of this Agreement and of the carrying of the same into effect (including the costs of the conveyances of the aerodrome site and of the substituted lands), and the costs of the Corporation in connection with the said Bill in Parliament shall be paid by the President, such costs in case of dispute to be taxed in the usual way. The provisions of this clause shall not be affected by this agreement becoming void and of no effect, or being rescinded under any provision herein contained.

14. In this agreement and in the schedules hereto the expression "the President" shall include his successors and assigns where the context so admits.

In witness whereof the Corporation have caused their corporate seal to be hereunto affixed, and the President has hereto set his hand and seal the day and year first before written.

THE FIRST SCHEDULE.

All that piece of common or waste land situate in the parish of Coulsdon, in the county of Surrey, and being part of the waste land of the manor of Coulsdon, and of the common known as "Kenley Common," and containing in the whole 51 acres 0 roods 13 perches or thereabouts, which said piece of common or waste land is numbered Pt. 292 and Pt. 571 on the 25th 1885 Ordnance Survey Map (1913 Edition), and is delineated and edged blue on the plan annexed hereto.

THE SECOND SCHEDULE.

*Conditions and Stipulations to be observed and performed by
the President, and to be binding so far as the law permits
on the aerodrome site.*

1. No buildings, erections, or works, shall be erected on any part of the aerodrome site.

2. The aerodrome site shall not at any time hereafter (except as herein provided) be used by the President, his successors, or assigns, for any purpose, except for the purpose

of an aerodrome for the public service or for purposes connected therewith.

3. No civil aircraft shall be permitted to use the aerodrome site except in cases of emergency.

4. The President shall permit the general public, at their own risk, to have free admission on public holidays for the purposes of recreation and enjoyment to so much of the aerodrome site as shall not for the time being be used for buildings, erections, or works, subject to such regulations as the President with the approval of the Corporation may from time to time prescribe and in the event of the President being satisfied from experience that no danger results to the general public from such admission he shall permit the general public more frequent admission to the said portion of the aerodrome site at such times and in such manner and subject to such regulations as the President with the like approval may from time to time determine: Provided that the President shall not be liable for any accident of whatever nature which shall or may occur to any member of the general public in consequence of such admission as aforesaid.

5. The President shall at all times keep open to all traffic as at present the main road to Caterham so far as the same crosses the aerodrome site.

THE THIRD SCHEDULE.

All those pieces of land lying between Kenley Common and the village of Whyteleafe and situate partly in the parish of Coulsdon aforesaid, and partly in the parish of Caterham in the county of Surrey containing in the whole 61 acres 3 roods or thereabouts, which said pieces of land are shewn numbered Pt. 18, 18A, Pt. 239, Pt. 251, Pt. 252A, 253, 254, 255, 255A, 255B, 256, 256A, 289, Pt. 290, Pt. 291, and 291A, on the said Ordnance Survey Map (1913) Edition, and are delineated and edged pink on the said plan annexed hereto.

THE FOURTH SCHEDULE.

*Works and Improvements to be executed by the Corporation on
the substituted lands.*

1. Thinning undergrowth, pruning, cleaning.
2. Making paths.
3. Laying whole of land down to grass.

4. Wooden stockade fence to be erected around the substituted lands.

5. A live fence to be erected within such wooden fence.

6. Drainage works.

7. Notice boards, by-laws, fixing same,

8. Seats and fixing same.

9. Keepers huts and fixing same.

Examined,

V. CROWTHER SMITH,
Comptroller.

Seal of the
Corporation of
the City of
London.

SIGNED, SEALED, and DELIVERED
by the above-named President of the Air Council in
the presence of } FREDERICK
GUEST.

L.S

J. E. STEPHENSON,
Assistant Private Secretary,
Colonial Office.

[*Here follows the plan annexed to the agreement.*]

CHAPTER 41.

An Act to amend section thirty-four of the Representation of the People Act, 1918, as respects offences under that section committed by bodies of persons. [4th August 1922.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The following subsection shall be inserted at the end of section thirty-four of the Representation of the People Act, 1918 (which provides that any unauthorised person who incurs expenses for the purpose of promoting

Amendment
of s. 34 of
7 & 8 Geo. 5.
c. 64.